



Workmen's Compensation and Benefit (Amendment) Act 1965

1965 CHAPTER 79

An Act to amend the law with respect to the supplementation of workmen's compensation and the provision of other benefit in respect of employment before 5th July 1948.
[22nd December 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The persons on whom a scheme under the Workmen's Compensation (Supplementation) Act 1951 (hereafter in this Act referred to as "the Supplementation Act") may provide for conferring a right to allowances payable out of the Industrial Injuries Fund shall include any person who is or has since the commencement of that Act been entitled to weekly payments by way of workmen's compensation, other than a person whose entitlement to such payments—

Supplementa-
tion of
workmen's
compensation.
1951 c. 22.

(a) arose in consequence of an accident happening after 31st December 1923; and

(b) ceased before 5th July 1956.

(2) The allowances for the payment of which a scheme under the Supplementation Act may make provision shall be—

(a) where the relevant accident happened before 1st January 1924, an allowance (hereafter in this section referred to as a "basic allowance") in respect of any period such as is mentioned in subsection (6) of this section;

(b) an allowance in respect of any period such as is mentioned in paragraph (a) of the said subsection (6)

(hereafter in this section referred to as a "major incapacity allowance");

- (c) subject to subsections (3) and (4) of this section, an allowance in respect of any period such as is mentioned in paragraph (b) of the said subsection (6) (hereafter in this section referred to as a "lesser incapacity allowance");

and a major incapacity allowance or lesser incapacity allowance in respect of any period shall be payable whether or not a basic allowance is also payable in respect of that period.

(3) A lesser incapacity allowance—

- (a) shall not be payable to any person in respect of any period unless there is or may be expected to be (or, but for the cesser at a time after the commencement of this Act of that person's entitlement to workmen's compensation, would or might be expected to have been) payable to that person in respect of that period either a weekly payment by way of basic allowance or a weekly payment by way of workmen's compensation which is not a notional payment;
- (b) except to a person who was receiving an allowance under the Supplementation Act immediately before the commencement of this Act, shall not be payable if the relevant accident happened after 31st December 1923 and the claimant's entitlement to workmen's compensation in consequence thereof ceased before that commencement.

(4) For the purposes of a lesser incapacity allowance, a weekly payment by way of workmen's compensation shall be treated as a notional payment if awarded or paid for the purpose of safeguarding a potential entitlement to compensation and not related to any existing loss of earnings; and a scheme under the Supplementation Act may provide that—

- (a) in such circumstances or cases as may be specified in the scheme; and
- (b) in particular, in cases where weekly payments by way of such compensation are being paid to a person to whom such payments were not made, or were made at a lower rate, during the period of twelve months immediately preceding such date as may be specified in the scheme, not being earlier than 30th November 1965,

a weekly payment by way of such compensation shall be deemed to be a notional payment unless the contrary is proved.

(5) The weekly rate of an allowance by virtue of subsection (2) of this section—

- (a) in the case of a basic allowance, shall not exceed two pounds less the amount of the recipient's workmen's

compensation and, in respect of a period such as is mentioned in subsection (6)(b) of this section which is a period of partial incapacity only, shall also not exceed the difference between two-thirds of the amount representing his weekly loss of earnings determined in accordance with a scheme under the Supplementation Act and the amount of his workmen's compensation ;

(b) in the case of a major incapacity allowance, shall be the corresponding disablement pension rate less the amount of the recipient's workmen's compensation and less the amount of his basic allowance, if any ;

(c) in the case of a lesser incapacity allowance, shall not exceed two pounds seven shillings and sixpence.

(6) The periods referred to in the foregoing provisions of this section are—

(a) any period during which the person claiming or receiving an allowance by virtue of the said subsection (2)—

(i) being or having been entitled to his workmen's compensation in respect of any injury or disease other than pneumoconiosis or byssinosis, is as a result of that injury or disease totally incapable of work and likely to remain so incapable for a considerable period ; or

(ii) being or having been entitled to his workmen's compensation in respect of pneumoconiosis, is certified under a scheme made under the Workmen's Compensation (Silicosis) Act 1918 (as 1918 c. 14. originally enacted or as extended by the Workmen's 1924 c. 40. Compensation (Silicosis) Act 1924) or under section 47 of the Workmen's Compensation Act 1925 (as 1925 c. 84. originally enacted or as extended by any subsequent enactment), or is determined in accordance with a scheme under the Supplementation Act, to be totally disabled ; or

(iii) is, or but for the determination of his right would be, entitled to his workmen's compensation in respect of byssinosis ; or

(iv) being or having been entitled to his workmen's compensation in respect of two or more injuries or diseases such as are mentioned in the three foregoing sub-paragraphs, is as the joint result of those injuries or diseases totally incapable of work and likely to remain so incapable for a considerable period ;

(b) any period which, not being a period such as is mentioned in paragraph (a) of this subsection, is a period of total or partial incapacity for work resulting from the relevant injury or disease.

1956 c. 51.

(7) The Workmen's Compensation and Benefit (Supplementation) Act 1956 (hereafter in this Act referred to as "the Act of 1956") (which makes provision for allowances in circumstances in which provision for comparable allowances is made by this or the next following section) shall cease to have effect.

Other benefit
in respect of
employment
before 5th
July, 1948.
1951 c. 4.
(15 & 16
Geo. 6 & 1
Eliz. 2).

2.—(1) The weekly rate of an allowance in respect of total disablement payable by virtue of section 1(1)(a) of the Pneumoconiosis and Byssinosis Benefit Act 1951 (hereinafter in this Act referred to as "the Benefit Act") shall be increased from forty shillings to the corresponding disablement pension rate.

(2) The persons to whom a scheme under section 1 of the Benefit Act may provide for the payment of benefit by way of a weekly allowance out of the Industrial Injuries Fund shall include any person who, as the joint result of—

- (a) a disease to which the Benefit Act applies in respect of which he is, or has at any time after 4th July 1956 been, entitled to weekly payments by way of an allowance by virtue of section 1(1)(a) of that Act; and
- (b) one or more other diseases or injuries in respect of each of which he is, or has at any such time been, entitled to weekly payments by way either of such an allowance or of workmen's compensation or of an allowance under the Supplementation Act,

is totally incapable of work and likely to remain so incapable for a considerable period.

(3) Subject to the provisions of the Benefit Act and to any provisions of a scheme thereunder for an adjustment of benefit thereunder by reference to pensions, allowances or other benefits payable out of public funds, the weekly rate of an allowance under that Act payable to any person by virtue of subsection (2) of this section in consequence of two or more diseases or injuries shall be the corresponding disablement pension rate less the amount of any weekly payments by way of workmen's compensation payable to that person in consequence of any of those diseases or injuries.

(4) For the avoidance of doubt—

- (a) the benefits in relation to which restrictions are or may be imposed by virtue of section 2 of the Benefit Act or section 2(1)(a) of the Industrial Diseases (Benefit) Act 1954 shall not include an allowance by virtue of subsection (2) of this section; and
- (b) nothing in section 3(2) of the Benefit Act shall apply to such an allowance.

1954 c. 16.

3.—(1) A scheme under the Supplementation Act or under the Benefit Act may include provision for adjusting the rate of, or extinguishing any right to, an allowance under the Act in question or under the other of those Acts in a case where the same person is, or would otherwise be, entitled separately in respect of two or more injuries or diseases to an allowance under the Act in question or, as the case may be, to both such an allowance and an allowance under the other of those Acts.

Supplementary provisions as to allowance.

(2) Where immediately before the commencement of this Act a person was receiving payments by way of one or more allowances under the Supplementation Act, the Benefit Act or the Act of 1956 of a greater amount or aggregate amount than, but for the provisions of this subsection, he would be entitled to receive after the commencement of this Act by way of allowances under the Supplementation Act or the Benefit Act, he shall continue to be entitled to that greater amount or aggregate amount for any period after the commencement of this Act for which he would have so continued if this Act had not been passed.

(3) Any claim in respect of a period before the commencement of this Act for an allowance under the Supplementation Act, the Benefit Act or the Act of 1956 may be made, and, when made, shall be determined, and any award thereon in respect of such a period shall be made, as if this Act had not been passed; and if on any such claim an allowance is awarded, subsection (2) of this section shall apply as if the claimant had been receiving payment of that allowance immediately before that commencement, whether or not he was in fact doing so.

(4) A scheme under the Supplementation Act or under the Benefit Act may include provision for the payment or award in respect of any period beginning on or after the date of commencement of this Act of an allowance under the Act in question without any further award or, as the case may be, any further claim, in a case where evidence of the satisfaction of the conditions for that allowance is afforded by the award before that date or under subsection (3) of this section of an allowance under the Act in question or under the Act of 1956.

4.—(1) For the purposes of this Act—

(a) the expression "corresponding disablement pension rate" means the weekly rate for the time being of a pension payable under section 12(5) of the National Insurance (Industrial Injuries) Act 1965 in respect of an assessment of one hundred per cent.;

Other supplementary provisions.

1965 c. 52.

(b) the expression "pneumoconiosis" means fibrosis of the lungs due to silica dust, asbestos dust or other dust,

and includes the condition of the lungs known as dust-reticulation; and, in the case of a person who suffers from pneumoconiosis accompanied by tuberculosis, the effects of the tuberculosis may be treated as if they were effects of the pneumoconiosis;

- (c) a period shall be treated as considerable if it lasts or can be expected to last for not less than thirteen weeks;
- (d) a person may be treated as being, as the result of an injury or disease or as the joint result of two or more injuries or diseases, totally incapable of work and likely to remain so incapable for a considerable period notwithstanding that the disability resulting from the injury or disease or, as the case may be, from the injuries or diseases taken together is not such as to prevent him from being capable of work, if it is likely to prevent his earnings (including any remuneration or profit derived from a gainful occupation) exceeding one hundred and four pounds a year.

(2) For the purposes of the Supplementation Act and this Act—

- (a) the expression “workmen’s compensation” shall mean compensation under any of the Workmen’s Compensation Acts or under any contracting-out scheme duly certified under any of those Acts;
- (b) the expression “the Workmen’s Compensation Acts” shall mean the Workmen’s Compensation Acts 1925 to 1945, the enactments repealed by the Workmen’s Compensation Act 1925, and the enactments repealed by the Workmen’s Compensation Act 1906;
- (c) the expressions “relevant accident” and “relevant injury or disease” shall mean the accident in consequence of which, or, as the case may be, the injury or disease in respect of which, an entitlement to weekly payments by way of workmen’s compensation arose;
- (d) a payment—

1917 c. 42.

1919 c. 83.

1940 c. 47.

1943 c. 49.

(i) under the Workmen’s Compensation (War Addition) Acts 1917 and 1919; or

(ii) under the Workmen’s Compensation (Supplementary Allowances) Act 1940 as amended by the Workmen’s Compensation (Temporary Increases) Act 1943,

shall be treated as a weekly payment by way of workmen’s compensation.

(3) For the purposes of section 1(1) of the Supplementation Act and section 1(1) of this Act, a person shall be deemed to

be or have been entitled to weekly payments by way of workmen's compensation at any time if he would be or, as the case may be, have been so entitled at that time if—

- (a) the amount of any payment, allowance or benefit received by him otherwise than by way of workmen's compensation ; or
- (b) where the relevant accident happened before 1st January 1924, either the said amount, or the amount he is earning or able to earn in some suitable employment or business, or both those amounts,

were sufficiently reduced.

(4) Where a scheme under the Supplementation Act or the Benefit Act is made for the purpose only of replacing provisions of previous schemes with new provisions to the same effect, section 1(4) of the Supplementation Act or, as the case may be, section 1(5) of the Benefit Act shall not apply so far as it provides that any such scheme shall not be made unless a draft of it has been laid before Parliament and approved by resolution of each House, but the scheme shall instead be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment.

(6) The enactments specified in Schedule 1 to this Act shall have effect subject to the consequential and other minor amendments so specified in relation to those enactments respectively ; and the enactments specified in Schedule 2 to this Act are hereby repealed to the extent respectively specified in the third column of that Schedule.

5. Subject to the provision made by section 61 of the National Insurance (Industrial Injuries) Act 1965 for reimbursement out of the Industrial Injuries Fund, there shall be paid out of moneys provided by Parliament any increase attributable to this Act in the expenses of the Minister of Pensions and National Insurance or any other government department which are so payable under the said section 61 as applied by the Supplementation Act or the Benefit Act.

6.—(1) This Act may be cited as the Workmen's Compensation and Benefit (Amendment) Act 1965.

Short title and
commence-
ment.

(2) This Act shall come into operation on such day as the Minister of Pensions and National Insurance may by order made by statutory instrument appoint.

SCHEDULES

Section 4(6).

SCHEDULE 1

CONSEQUENTIAL AND OTHER MINOR AMENDMENTS

1. In section 1(1) of the Supplementation Act, at the beginning there shall be inserted the words "Subject to the provisions of section 1(1) of the Workmen's Compensation and Benefit (Amendment) Act 1965"; and the words from "in consequence" onwards shall cease to have effect.

2. In section 1(2) of the Supplementation Act, after the words "provisions of this Act" there shall be inserted the words "and the provisions of the said Act of 1965".

3. In section 1(5)(c) of the Supplementation Act, after the words "this Act" there shall be inserted the words "or in the said Act of 1965".

4. In section 2(3) of the Supplementation Act, for the words "references in the last foregoing subsection" there shall be substituted the words "reference in section 1(6)(b) of the Workmen's Compensation and Benefit (Amendment) Act 1965".

5. In section 2(5) of the Supplementation Act, after the words "in this section" there shall be inserted the words "or in the said Act of 1965", and at the end there shall be added the words "and provided further that a scheme may include provision that, in such special circumstances or cases and for such purposes as may be specified in the scheme, any such reference as aforesaid shall be taken as referring to such amount as it may be determined in manner provided by the scheme ought reasonably and properly to have been the amount of those weekly payments".

6. In section 2(6) of the Supplementation Act, after the figures "1919" there shall be inserted the words "or under the Workmen's Compensation (Supplementary Allowances) Act 1940 as amended by the Workmen's Compensation (Temporary Increases) Act 1943".

7. For the avoidance of doubt, the transitional or consequential provisions for modifying any scheme made under the enactments repealed by section 89(1) of the National Insurance (Industrial Injuries) Act 1946 which may be made by virtue of paragraph (b) of the proviso to the said section 89(1) shall include provision for the union of any fund established under any such scheme with any other fund established for comparable purposes.

1940 c. 47.
1943 c. 49.

1946 c. 62.

SCHEDULE 2

Section 4(6).

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 22.	The Workmen's Compensation (Supplementation) Act 1951.	Section 1(1) from "in consequence" onwards. Section 1(5)(a), (b) and (d). Section 2(1), (2), (4) and (8). The whole Act.
4 & 5 Eliz. 2. c. 51.	The Workmen's Compensation and Benefit (Supplementation) Act 1956.	
5 & 6 Eliz. 2. c. 26.	The National Insurance Act 1957.	In the Schedule, paragraph 2.
10 & 11 Eliz. 2. c. 6.	The Family Allowances and National Insurance Act 1961.	Section 1. Section 3(4) from "and in subsection" onwards. Schedule 1.
1963 c. 7.	The National Insurance Act 1963.	Section 5.
1964 c. 96.	The National Insurance &c. Act 1964.	Section 3(1) and (2).